

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JUNE 16, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**BROOK TERRELL vs. HEATHER DUKE; ET AL.
Case No. CU24-05460**

Defendants Motion for Sanctions

TENTATIVE RULING

Defendants JOHN M. JAMESON CONSTRUCTION, INC. and JOHN M. JAMESON ("JAMESON Defendants") move for sanctions against Plaintiff BROOKE TERRELL on the basis that her first amended complaint alleging causes of action against them for negligent misrepresentation, fraud, and negligence is indisputably without merit.

Code of Civil Procedure section 128.7 permits a court to impose sanctions for filing a pleading if the court concludes that the pleading was filed for an improper purpose or is indisputably without merit, either legally or factually. (*Peake v. Underwood* (2014) 227 Cal.App.4th 428, 440.) A claim is factually frivolous if it is not well grounded in fact and legally frivolous if it is not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law. (*Ibid.*) A party moving for sanctions under section 128.7 on grounds of a meritless pleading must show that the filing party's conduct was objectively unreasonable, meaning that any reasonable attorney would agree that the claim is totally and completely without merit. (*Ibid.*)

JAMESON Defendants do not demonstrate that Plaintiff's first amended complaint is not indisputably without merit such that any reasonable attorney would agree the claims within are meritless. JAMESON Defendants' arguments that causes of action not alleged against them are without factual basis because Plaintiff states those causes of action against Doe defendants alleged in boilerplate pleading to be JAMESON Defendants' agents and/or alter egos is frivolous. A Doe defendant is not considered a

party to litigation until actually named as a particular party. (*Gilmore v. Lick Fish & Poultry, Inc.* (1968) 265 Cal.App.2d 106, 112.) Plaintiff's causes of action alleged against JAMESON Defendants – those for negligent misrepresentation, negligent misrepresentation, and negligence – contain clear allegations of fact stating JAMESON Defendants' liability beyond her use of Does: she alleges that she engaged JAMESON Defendants to provide her a quotation of repair costs, that JAMESON Defendants falsely represented their qualifications to provide such a quotation, and that they falsely and/or negligently provided her an unrealistically low quotation. (1AC at ¶¶ 33-35, 49-53, 72-73, 75.) Her reliance and their intent to induce reliance can be inferred from the simple fact that they offered a quotation in the context of being retained to inform Plaintiff of what the costs to repair the property would be so that she could confidently proceed with a real estate purchase. (*Id.* at ¶¶ 22, 36.) Plaintiff's prayer properly requests estimated damages from harms allegedly caused by JAMESON Defendants' acts or omissions, notably those flowing from her allegedly being deceived into continuing with the real estate purchase and having to engage in repairs more costly than estimated.

JAMESON Defendants' motion is denied.

TANYA INIGUEZ vs. FCA US, LLC; ET AL.
Case No. CU25-01701

Defendant FCA US, LLC's Motion for Judgment on the Pleadings

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. FCA's notice of motion does not provide notice of local ruling 3.9 regarding tentative rulings.

Defendant FCA US, LLC ("FCA") moves for judgment on the pleadings against Plaintiff TANYA INIGUEZ's complaint relevantly alleging violations of the Song-Beverly Consumer Warranty Act (the "Act") and fraudulent inducement. Summarized, Plaintiff's complaint alleges that FCA violated the Act in that it failed to repair or repurchase Plaintiff's 2016 Chrysler 200 (the "Vehicle") after the Vehicle manifested defects within the warranty period and FCA concealed existence of the Vehicle's 9-speed transmission defect from Plaintiff prior to purchase.

Notice of Tentative Ruling. FCA's notice of motion does not advise the recipient that the Solano County Superior Court uses a tentative ruling system, as is required under Local Rule 3.9, subdivision (d). FCA is to observe local rules going forward.

Legal Standard

A defendant may move for judgment on the pleadings on the basis that the complaint against him does not state facts sufficient to constitute a cause of action. (Code Civ.